

Court No. - 32

Case :- WRIT - C No. - 43164 of 2019

Petitioner :- Vinay Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ravi Shanker Tiwari

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

As prayed by Sri Mukesh Kumar Singh, learned counsel for the respondent no.3, put up this matter as fresh on 9.1.2020 to enable him to seek instructions.

Order Date :- 3.1.2020

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Court No. - 32

Case :- WRIT - C No. - 43164 of 2019

Petitioner :- Vinay Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ravi Shanker Tiwari

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

As prayed by the learned counsel for the Electricity Department, put up this matter as fresh on 13.1.2020 for seeking instructions in the matter.

Order Date :- 9.1.2020

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Court No. - 32

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Petitioner :- Vinay Kumar Singh
Respondent :- State Of U.P. And 2 Others
Counsel for Petitioner :- Ravi Shanker Tiwari
Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

" (a) Issue a writ or direction in the nature of certiorari by quashing the citation notice dated 18.7.19 sent by respondent no.2 to the petitioner."

Heard the learned counsel for the petitioner and Mr. Mukesh Kumar Singh, learned Standing Counsel for the Electricity Department and perused the record.

Learned counsel for the petitioner submits that the impugned citation notice has been issued against one 'Rajee Pradhan' son of Sri Dharmendra whereas the name of the petitioner is 'Vinay Kumar Singh', as such the petitioner has no concern at all with the impugned citation and therefore no coercive measures can be taken against the petitioner. He further submitted that the respondents are taking coercive action against the petitioner without

giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Per contra, learned counsel appearing on behalf of the Electricity Department submitted that earlier an application, being Application U/S 482 No. 46827 of 2019, was filed by the petitioner for quashing the entire proceedings of Special Case No. 98 of 2019(State Vs. Rajee Pradhan) in connection with the theft of electricity and in the said application the petitioner has described himself as 'Rajje Pradhan alias Vinay Kumar Singh'. As such, the petitioner himself has admitted that his alias name is 'Rajje Pradhan' and the present writ petition has been filed describing himself only as 'Vinay Kumar Singh' just to escape from the liability of payment of electricity dues under the impugned citation and as such both the names viz Rajje Pradhan and Vinay Kumar Singh are of one and the same person i.e. the petitioner.

We find substance in the submission so made by the learned Standing counsel for the Electricity Depttment. The submission of the learned counsel for the petitioner that the petitioner has no connection with the impugned citation issued against Rajje Pradhan is totally misconceived.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 31.1.2020 at 11.00 A.M. before the Respondent No.3,

Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned citation notice shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 14.1.2020

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